

GROUND LESSOR ESTOPPEL CERTIFICATE

Date: _____, 2026

6075 SUNSET DR 1 LLC, as administrative agent,
its successors and/or assigns, as their interest may appear
520 Madison Avenue, Suite 3501
New York, New York 10022

6075 SUNSET DR 1 LLC, its successors and/or assigns, as their interest may appear
520 Madison Avenue, Suite 3501
New York, New York, 10022

6075 SUNSET DR 2 LLC, as administrative agent,
its successors and/or assigns, as their interest may appear
520 Madison Avenue, Suite 3501
New York, New York 10022

6075 SUNSET DR 2 LLC, its successors and/or assigns, as their interest may appear
520 Madison Avenue, Suite 3501
New York, New York, 10022

RE: Premises located at 6075 Sunset Drive, South Miami, Florida 33143 (the “**Premises**”
or “**Property**”)

Ladies and Gentlemen:

The undersigned, SUNSET-MIAMI INVESTMENTS, INC., a Florida corporation (“**Lessor**”), as lessor under that certain Ground Lease dated September 1, 2018, made by and between Lessor, as landlord, and ALTA SUNSET, LLC, a Florida limited liability company (the “**Original Lessee**”), as tenant (hereinafter, together with all extensions, renewals or modifications thereof, referred to as the “**Original Lease**”), as amended by an Amendment to Ground Lease dated as of September 8, 2020, made by and between Lessor and Original Lessee (the “**Original Lease 1st Amendment**”), as affected by an Agreement to Assign Ground Lease dated as of March 16, 2021, made by and between Lessor and Original Lessee (the “**Original Lease Agreement to Assign**”), as further amended by a Second Amendment to Ground Lease dated as of March 14, 2022, made by and between Lessor and Original Lessee (the “**Original Lease 2nd Amendment**”), as further amended by a Third Amendment to Ground Lease dated as of May __, 2023, made by and between Lessor and Original Lessee (the “**Original Lease 3rd Amendment**”), as further amended by a Fourth Amendment to Ground Lease dated as of September 30, 2024, made by and between Lessor and Original Lessee (the “**Original Lease 4th Amendment**”), as thereafter affected by an Assignment and Assumption of Ground Lease dated as of October 1, 2025 (the “**Original Lease Assignment**”), and thereafter further amended by that certain Fifth Amendment to Ground Lease dated as of February [___], 2026 (the “**Original Lease 5th Amendment**”, and together

with the Original Lease, the Original Lease 1st Amendment, the Original Lease Agreement to Assign, the Original Lease 2nd Amendment, the Original Lease 3rd Amendment, the Original Lease 4th Amendment, and the Original Lease Assignment, collectively, the “**Lease**”), by Original Lessee to **ALTA SUNSET II LLC**, a Florida limited liability company (“**Lessee**”), covering the Property, hereby warrants, represents and certifies to each of (i) 6075 SUNSET DR 1 LLC, a Delaware limited liability company, in its capacity as administrative and collateral agent of the Mortgage Loan (as hereinafter defined) (in such capacity, together with its successors and assigns, the “**Mortgage Loan Administrative Agent**”), (ii) 6075 SUNSET DR 1 LLC, a Delaware limited liability company, in its capacity as lender of the Mortgage Loan (in such capacity, together with its successors and assigns, “**Leasehold Mortgagee**”), (iii) 6075 SUNSET DR 2 LLC, a Delaware limited liability company, in its capacity as administrative and collateral agent of the Mezzanine Loan (as hereinafter defined) (in such capacity, together with its successors and assigns, the “**Mezzanine Loan Administrative Agent**”, and together with the Mortgage Loan Administrative Agent, collectively, the “**Administrative Agents**”), and (iv) 6075 SUNSET DR 2 LLC, a Delaware limited liability company, in its capacity as lender of the Mezzanine Loan (together with its successors and assigns, “**Mezzanine Lender**”, and together with the Leasehold Mortgagee, each a “**Lender**”, and collectively, “**Lenders**”), and each subsequent owner of (x) that certain mortgage loan in the principal amount of up to [\$_____] (the “**Mortgage Loan**”), to be made by Leasehold Mortgagee to Lessee, and (y) that certain mezzanine loan in the principal amount of up to [\$_____] (the “**Mezzanine Loan**”) to be made by Mezzanine Lender to ALTA SUNSET II HOLDINGS, LLC, a Delaware limited liability company (the “**Mezzanine Borrower**”), the sole member of Lessee, as follows, as of the date hereof (all capitalized terms not otherwise defined herein shall have the meanings ascribed thereto in the Lease):

(1) The term of the Lease commenced on September 1, 2018, and expires on August 31, 2117.

(2) The current fixed rent under the Lease is \$30,315.84 per annum, payable in monthly installments, and has been paid in full through February 28, 2026. No additional rent or charge (including taxes, maintenance, operating expenses or otherwise) that has been billed to Lessee by Lessor is overdue. There are no provisions for, and Lessor has no rights with respect to increasing the rent, except as expressly set forth in the Lease. The amount of the security deposit presently held by Lessor under the Lease is \$857,617.19. No annual fixed rent, additional rent or other sum due under the Lease has been paid for more than one month in advance of its due date.

(3) All conditions precedent to the effectiveness of the Lease have been fully satisfied and the Lease is in full force and effect. The Lease has been duly executed and delivered by, and is a binding obligations of, Lessor. A list of all of the documents constituting the Lease is attached as Exhibit A. The Lease has not been assigned, modified, supplemented or amended in any way, except as described on Exhibit A. There are no other agreements concerning the Property, whether oral or written, between Lessee and Lessor. The Lenders and the Administrative Agents reserve the right to require complete copies of all documents constituting the Lease to be attached to this Estoppel Certificate and certified as true, correct and complete copies by the Lessor.

(4) Lessor has not delivered or received any notices of default under the Lease; to the best of the Lessor's knowledge, there is no default by Lessee or Lessor under the Lease, nor has any event or omission occurred which, with the giving of notice or the lapse of time, or both, would constitute a default. To the best of the undersigned's knowledge, there exists no offset or defense against the enforcement of any of the terms of the Lease. Lessee does not have any right or option to renew or extend the Lease or terminate the Lease in whole or part prior to the expiration of the term, or to purchase all or any part of the Property, except for the First Offer Right (as defined in the Lease) set forth in Section 20.4 of the Lease.

(5) Lessor is the record and beneficial owner of the Property. Lessor has not subordinated its interest in the Lease to any mortgage, lien or other encumbrance on the fee. Lessor has not assigned, conveyed, transferred, sold, encumbered or mortgaged its interest in the Lease or the Property.

(6) The Lessor acknowledges that this Certificate is intended to constitute, and hereby does constitute, the express consent of the Lessor to (i) the Mortgage Loan to be secured by a first (1st) priority Construction Loan Mortgage and Security Agreement encumbering the Premises (as may be amended, restated, supplemented, revised, replaced, split, severed, assigned or otherwise modified from time to time, herein referred to as, the "**Mortgage**"), and (ii) the Mezzanine Loan to be secured by a pledge of the equity interests in Lessee owned by Mezzanine Borrower. Notwithstanding anything to the contrary set forth in the Lease, the Lessor hereby agrees to recognize (i) the Mortgage as a "Leasehold Mortgage", for all purposes under the Lease, (ii) Leasehold Mortgagee as a "Leasehold Mortgagee" for all purposes under the Lease, and (iii) Mezzanine Lender as a "Mezzanine Lender" for all purposes under the Lease.

(7) Lessor has not received written notice of any pending eminent domain proceedings or other governmental actions or any judicial actions of any kind against Lessor's interest in the Property.

(8) The Lessor represents to the Lenders and the Administrative Agents that, as of the date hereof, there exists no fee mortgage secured by the Property. Lessor agrees that it will not, without the prior written consent of the Lenders and the Administrative Agents, create, grant or permit to be created or granted, or permit to remain, any additional mortgage, pledge, lien, encumbrance, option to purchase or charge, or security interest, or conditional sale or other title retention agreement, with respect to the fee.

(9) If a default shall occur under the Lease, Lessor shall provide Lenders and Administrative Agents with written notice of such default contemporaneously with giving notice thereof to Lessee. Lenders shall have the right, but not the obligation, to pay such amounts and/or take such steps as required to cure such noticed default and the Lenders and Administrative Agents shall be provided with the same period of time as Lessee to cure such noticed default, but which time to cure shall not commence until such date on which Lessee's time to cure under the Lease has expired. If the Lease shall terminate or be rejected prior to the expiration of the term thereof, including without limitation if the Lease is rejected in connection with a bankruptcy proceedings, Lessor shall enter into a new Lease for the Premises with Lenders, the Administrative Agents, or their respective designees, for the remainder of the term, including all extension options, effective as of the date of

such termination, at the same rent and upon the same terms, covenants and conditions contained in the Lease, on condition that: (a) the Administrative Agents, each acting as the administrative and collateral agent for the respective Lender, shall make a written request for a new lease within one (1) month after it has received notification of a default; (b) the Lenders shall have cured all defaults of Lessee (excepting defaults that are personal to the Lease which remain uncured as of the commencement date of the new lease, and shall pay unpaid sums which would have been payable under the Lease at time of new lease, but for such termination, and shall pay or cause to be paid to Lessor, as of that date, all reasonable expenses incurred by Lessor including Lessor's reasonable attorney's fees in connection with any such default and termination, as well as in connection with the execution and delivery of the new lease to Lenders, the Administrative Agents, or their respective designees. If Lenders are issued a new lease pursuant to the terms of this section, Lessor agrees that any judgments, claims or lawsuits obtained against the Lenders and/or the Administrative Agents shall be satisfied solely out of the Lenders' and/or Administrative Agents' interest in the Premises.

(10) Lessor hereby recognizes Leasehold Mortgagee as a "Leasehold Mortgagee" as defined in the Lease, for all purposes under the Lease, and waives any requirement pursuant to the Lease that it receive a separate notice of the Mortgage, with the Lessor acknowledging that this Certificate shall constitute receipt of the notice required to be delivered to Lessor to cause Leasehold Mortgagee to constitute a Mortgagee. Lessor hereby recognizes Mezzanine Lender as a "Lender" for all purposes under the Lease, and waives any requirement pursuant to the Lease that it receive a separate notice of the Mezzanine Loan, with the Lessor acknowledging that this Certificate shall constitute receipt of the notice required to be delivered to Lessor to cause Mezzanine Lender to constitute a Mezzanine Lender. Lessor consents to the execution and delivery by Lessee to Mortgage Loan Administrative Agent of the Mortgage covering Lessee's leasehold interest in and to the Property and the recording of same in the applicable real property records. Lessor also consents to the execution and delivery by Lessee, and the filing and/or recording in the appropriate public records, of such additional documents and instruments as the Lenders and/or the Administrative Agents may deem necessary or desirable to establish, perfect and maintain a lien upon and against Lessee's leasehold interests in the Property, including, but not limited to, Uniform Commercial Code financing statements and such other documents, instruments and agreements as the Lenders and/or the Administrative Agents may deem necessary or desirable in connection with the creation, grant, maintenance, renewal, extension, modification or enforcement of the lien. Lessor hereby consents to the making of the Mezzanine Loan, and the exercise by Mezzanine Lender of its rights and remedies under the Mezzanine Loan. The Lenders' lien on the Lessee's personal property located at the Premises shall be superior to that of the Lessor's. Lessor will not recognize any other mortgage as a Leasehold Mortgage (as defined in the Lease) until such time as the Loan to the Lender has been satisfied in full.

(11) All of the Leasehold Mortgage protection provisions contained in the Lease, including, but not limited to, Article 11, and all other provisions inuring to the benefit of leasehold mortgagees or their successors and assigns are hereby incorporated into this agreement by reference and restated and confirmed by Lessor for the benefit of Leasehold Mortgagee, its successors and assigns. Unless otherwise notified by Leasehold Mortgagee, all notices to Leasehold Mortgagee and Mortgage Loan Administrative Agent shall be sent to the following addresses:

Mortgage Loan Administrative Agent:

6075 Sunset Dr 1 LLC
520 Madison Avenue, Suite 3501
New York, New York 10022
Attn.: Brian Shatz & Joshua Zegen

With a copy to:

Kriss & Feuerstein LLP
360 Lexington Avenue, Suite 1200
New York, New York 10017
Attn: Jerold C. Feuerstein, Esq.

Leasehold Mortgagee:

6075 Sunset Dr 1 LLC
520 Madison Avenue, Suite 3501
New York, New York 10022
Attn.: Brian Shatz & Joshua Zegen

With a copy to:

Kriss & Feuerstein LLP
360 Lexington Avenue, Suite 1200
New York, New York 10017
Attn: Jerold C. Feuerstein, Esq.

All of the Mezzanine Lender protection provisions contained in the Lease and all other provisions inuring to the benefit of mezzanine lender or their successors and assigns are hereby incorporated into this agreement by reference and restated and confirmed by Lessor for the benefit of Mezzanine Lender, its successors and assigns. Unless otherwise notified by Mezzanine Lender, all notices to Mezzanine Lender and Mezzanine Loan Administrative Agent shall be sent to the following addresses:

Mezzanine Loan Administrative Agent:

6075 Sunset Dr 2 LLC
520 Madison Avenue, Suite 3501
New York, New York 10022
Attn.: Brian Shatz & Joshua Zegen

With a copy to:

Kriss & Feuerstein LLP
360 Lexington Avenue, Suite 1200
New York, New York 10017
Attn: Jerold C. Feuerstein, Esq.

Mezzanine Lender:

6075 Sunset Dr 2 LLC
520 Madison Avenue, Suite 3501
New York, New York 10022
Attn.: Brian Shatz & Joshua Zegen

With a copy to:

Kriss & Feuerstein LLP
360 Lexington Avenue, Suite 1200
New York, New York 10017
Attn: Jerold C. Feuerstein, Esq.

(12) Lessor shall not amend, modify or accept a surrender or termination of the Lease for any reason whatsoever, excepting if Lenders or Administrative Agents fail to cure all Lessee's defaults, (that are susceptible to be cured), within the time frames specified in Paragraph 9 hereof without the Lenders' and Administrative Agents' prior written consent and any such purported action without such consent shall not be binding on the Lenders and the Administrative Agents.

(13) Lessor has not received written notice that it is in violation of any governmental law or regulation applicable to its interest in the Property and has no reason to believe that there are grounds for any claim of any such violation.

(14) Neither Lessee nor any affiliate of Lessee has any direct or indirect ownership interest in Lessor or any affiliate of Lessor.

(15) No union of the interests of Lessor and Lessee shall result in a merger of the Lease into any superior leasehold interest or the fee interest in the Property.

(16) For the purposes of notices under the Lease, the addresses set forth above in Paragraph 11 shall be the notice addresses of the Lenders and the Administrative Agents. No notice of default sent by Lessor to Lessee or Lenders or the Administrative Agents shall be effective as against the Lender unless a copy thereof is also sent to the Lenders and the Administrative Agents.

(17) Lessor and the person or persons executing this certificate on behalf of Lessor have the power and authority to execute this certificate.

(18) The Lessor's lien and right to setoff sums due to the Lessor against any casualty or

condemnation proceeds or awards with respect to the improvements to the Property shall be subject and subordinate to the interest of the Lenders and the Administrative Agents, as applicable, in such proceeds. Notwithstanding anything to the contrary contained in the Lease, if the buildings and improvements on the Premises shall be damaged or destroyed by fire or other casualty the insurance proceeds shall be delivered to Lenders and the Administrative Agents or such insurance trustee and applied to payment of the cost of restoration and repair of the Premises and the improvements thereon. If such damage or destruction shall be to such an extent that the Lease shall be terminated in accordance with the terms of the Lease, all insurance proceeds arising from such loss shall be paid to the Lenders to be applied pursuant to the terms of the Leasehold Mortgage. Notwithstanding anything to the contrary contained in the Lease, if all or any part of the Premises should be lawfully condemned or taken in any manner for any public or quasi-public use, the portion of the award pertaining to the Lessee's interest therein shall be paid to the Lenders to be held by the Administrative Agents, in their capacity as administrative and collateral agent for the respective Lender, and applied pursuant to the terms of the Leasehold Mortgage for payment of the cost of restoration and repair of the Premises and any buildings or improvements thereon which were affected by the taking.

[NO FURTHER TEXT, SIGNATURE PAGE TO FOLLOW]

The Lenders and the Administrative Agents, and their respective successors and assigns, may rely upon the truth and accuracy of the certifications contained herein, and said certifications shall be binding upon Lessor and its successors and assigns, and inure to the benefit of the Lenders and the Administrative Agents, and their respective successors and assigns. This Certificate shall not be deemed to alter or modify any of the terms and conditions of the Lease.

SUNSET-MIAMI INVESTMENTS, INC.,
a Florida corporation

By: _____
Name: _____
Title: _____

STATE OF _____)
) ss:
COUNTY OF _____)

On the ____ day of _____, in the year 2026, before me, the undersigned, a Notary public in and for said State, personally appeared _____, the _____ of SUNSET-MIAMI INVESTMENTS, INC., a Florida corporation, personally known to me or proved to me on the basis of satisfactory evidence to be the individual whose name is subscribed to the within instrument and acknowledged to me that he/she executed the same in his/her capacity, and that by his/her signature on the instrument, the individual, or the person upon behalf of which the individual acted, executed the instrument, and that such individual did make such appearance before the undersigned in the City of _____, State of _____.

Notary Public

Summary report: Litera Compare for Word 11.8.0.56 Document comparison done on 2/17/2026 8:48:08 PM	
Style name: Default Style	
Intelligent Table Comparison: Active	
Original DMS: nd://4896-5563-5066/1/Alta Sunset - Ground Lease Estoppel.DOCX	
Modified DMS: nd://4896-5563-5066/2/Alta Sunset - Ground Lease Estoppel.docx	
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<u>Add</u>	42
<u>Delete</u>	13
<u>Move From</u>	0
<u>Move To</u>	0
<u>Table Insert</u>	0
<u>Table Delete</u>	0
<u>Table moves to</u>	0
<u>Table moves from</u>	0
Embedded Graphics (Visio, ChemDraw, Images etc.)	0
Embedded Excel	0
Format changes	0
Total Changes:	55